

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
CHARLES YOUNTS

Plaintiff,

- against -

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, NYPD OFFICER
BRIAN BENVENUTO, NYPD POLICE OFFICERS
JOHN DOES 1-6, ADDITIONAL NEW YORK
CITY POLICE OFFICERS Involved In The
Occurrence Herein, Both Individually And In Their
Official Capacities.

Defendants.
-----X

Date Purchased:

Index No:

Plaintiff Designates
as the place of Trial
New York County

SUMMONS

Plaintiff Charles Younts
resides at 77 Christopher
Street, New York,
New York 10014
in the County of New York

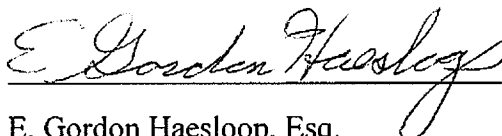
To the above-named Defendants:

YOU ARE HEREBY SUMMONED and required to serve upon Plaintiff's Attorneys, at their address stated below, an Answer to the attached Complaint. If this Summons was personally served upon you in the State of New York, the Answer must be served within twenty days after such service of the Summons, excluding the date of service. If the Summons was not personally delivered to you within the State of New York, the Answer must be served within thirty days after service of the Summons is complete as provided by law. If you do not serve an Answer to the attached Complaint within the applicable time limitation stated above, a judgment may be entered against you, by default, for the relief demanded in the Complaint, without further notice to you. The action will be heard in the Supreme Court of the State of New York, in and

for the County of New York. This action is brought in the County of New York because it is the County where the incident complained of occurred.

DATED: Mineola, New York
May 10, 2018

RAISER & KENNIFF, P.C.



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Defendants' Addresses:

THE CITY OF NEW YORK
100 Gold Street
New York, New York 10038

THE CITY OF NEW YORK
Attn: Corporation Counsel
100 Church Street, 5th Floor
New York, New York 10007

NEW YORK CITY COMPTROLLER
One Centre Street
Municipal Building, Room 1225
New York, New York 10007

THE NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza Path
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
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CITY POLICE OFFICERS Involved In The
Occurrence Herein, Both Individually And In Their
Official Capacities.Defendants.
-----X**Date Purchased:****Index No:**Plaintiff Designates
as the place of Trial
New York County**VERIFIED COMPLAINT**Plaintiff Charles Younts
resides at 77 Christopher
Street, New York,
New York 10014
in the County of New York

Charles Younts ("Mr. Younts" or "Plaintiff"), by his undersigned attorneys, Raiser & Kenniff, P.C., as and for his Verified Complaint against the City of New York (the "City"), the New York City Police Department (the "NYPD"), NYPD Officer Brian Benvenuto ("Benvenuto"), and NYPD POLICE OFFICERS John Does Numbers 1-6, unknown and intended to be named NYPD Officers involved in the occurrences herein, individually and in their respective capacities as members of the NYPD (collectively, the "Defendants"), hereby allege as follows:

PRELIMINARY STATEMENT

1. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988, the Fourth and Fourteenth Amendments to the United States Constitution, and Article I, §§ 11 and 12 of the New York State Constitution. Plaintiff brings this action for violations of civil rights, false

statements, false arrest, false imprisonment, excessive force, malicious prosecution, negligent hiring, negligent training and supervision, and other wrongful acts by Defendants.

2. Plaintiff alleges that on or about September 30, 2017, at approximately 4:25 a.m., he was lawfully present on the sidewalk in front of a store located at 110 7th Ave South, New York, New York 10014, when he was attacked by NYPD Officers who subsequently arrested him.

3. Police Officer Benvenuto made false statements against Mr. Younts alleging that Younts assaulted Benvenuto in an attempt to obstruct police activity.

4. Plaintiff further alleges that based upon Benvenuto's false statements, Plaintiff was falsely arrested and imprisoned on or about September 30, 2017, and maliciously prosecuted for the crimes of Obstructing of Governmental Administration and Resisting Arrest.

5. Moreover, on or about February 7, 2018, the criminal case against Plaintiff was finally dismissed.

6. Plaintiff further alleges that Defendants caused Plaintiff severe injuries, including, but not limited to, personal injuries, pain and suffering, reputational damage, loss of wages and employment, legal fees, and related damages, by reason of the intentional, malicious, willful, reckless, careless, and/or negligent conduct of Defendants, their agents, servants, employees, and/or licensees.

7. Plaintiff further alleges that the City and NYPD are individually, jointly and severally liable for the violations of Plaintiff's Constitutional rights, in that said defendants have:

(a) falsely arrested and imprisoned Plaintiff based upon false statements made by Benvenuto herein;

(b) maliciously prosecuted Plaintiff for crimes he did not commit;

(c) exhibited deliberate indifference to the exculpatory evidence in Plaintiff's criminal case, and allowed the unlawful prosecution to unreasonably drag on for four months;

(d) failed to properly and adequately hire their agents, servants, employees, and/or licensees involved in the occurrences herein; and

(e) failed to properly train, instruct, supervise, and/or discipline their agents, servants, employees, and/or licensees involved in the occurrences herein.

JURISDICTION AND VENUE

8. Jurisdiction is conferred upon this Court by 28 U.S.C. §§ 1331, 1343(a)(3) and (4), this being an action seeking redress, and to recover damages for violations of Plaintiff's Constitutional and civil rights.

9. This State Court may exercise jurisdiction over a 42 U.S.C §1983 Claim. See Haywood v. Drown, 556 U.S. 729, 731 (2009); Patsy v. Board of Regents of Florida, 457 U.S. 496, 506-07 (1982); Maine v. Thiboutot, 448 U.S. 1, 3 n.1 (1980).

PARTIES

10. Plaintiff was and is, at all relevant times herein, a resident of the County of New York, State of New York.

11. Defendant Benvenuto and John Does Numbers 1-6 and unknown Police Officers, were and are, at all times relevant herein, officers, employees, and agents of the Defendant NYPD, a municipal agency of the Defendant City.

12. At all times relevant herein, Benvenuto and John Does Numbers 1-6 and unknown Police Officers, were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the NYPD, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of

their duties. They were acting for, and on behalf of, the City at all times relevant herein with the power and authority vested in them as officers, agents, and employees of the City and incidental to the pursuit of their duties as officers, employees, and agents of the City.

13. The Defendant City is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department and a district attorney's office, which both act as its agents in the areas of law enforcement and criminal prosecution respectively, and for which it is ultimately responsible. The City assumes the risks incidental to the maintenance of a police force and a district attorney's office, and the employment of Police Officers and assistant district attorneys, as said risk attaches to the public consumers of the services provided by the City.

STATEMENT OF FACTS

14. On or about September 30, 2017, at approximately 4:25 a.m., Plaintiff was legally present on the sidewalk in front of a store located at 110 7th Ave South, New York, New York 10014.

15. While lawfully present on the sidewalk, Plaintiff observed Benvenuto and other Police officers (John Does 1-6) harassing an elderly black man in an arm cast. Plaintiff began taking a video on his cellphone of the police activity.

16. Officers then approached Mr. Younts and pulled him to ground using the collar of Mr. Younts' shirt.

17. At no point in time did Mr. Younts make any aggressive movements or actions towards the police officers.

18. The police officers proceeded to mercilessly beat Mr. Younts by striking him with their fists, legs, and nightsticks.

19. After Benvenuto's false statements were made, police officers arrested Mr. Younts, September 30, 2017.

20. Benvenuto himself wrote and signed the Information as the complainant, in which he falsely alleged that Plaintiff instigated a physical altercation between the police and himself.

21. As a result of the arrest based on Benvenuto's false statements, Plaintiff spent one day in jail.

22. Upon information and belief, there existed a video tape that documented the incident and demonstrated that Benvenuto's statements were false, this video was ignored by the NYPD for the entire duration of the criminal litigation against Plaintiff.

23. After four months of litigation, the criminal charges against Plaintiff were dismissed on or about February 7, 2018.

FIRST CAUSE OF ACTION
(Constitutional Violations - 42 U.S.C. § 1983)

23. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

24. Defendants, under color of state law, subjected Plaintiff to the foregoing acts and omissions without due process of law and in violation of 42 U.S.C. § 1983, thereby depriving Plaintiff of his rights, privileges and immunities secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, including, without limitation, deprivation of the following constitutional rights:

- a. freedom to engage in protected speech;
- b. freedom of assembly;
- c. freedom of association;
- d. freedom to petition for redress of grievances;

- e. freedom from unreasonable seizure of his person, including excessive force;
- f. freedom from arrest without probable cause;
- g. freedom from false imprisonment, that being wrongful detention without good faith, reasonable suspicion or legal justification, and of which wrongful detention Plaintiff was aware and to which Plaintiff did not consent;
- h. freedom from abuse of process;
- i. freedom from deprivation of liberty without due process of law; and
- j. equal protection, privileges and immunities under the laws.

25. As a direct and proximate result of Defendants' deprivation of Plaintiff's Constitutional rights, Plaintiff suffered the damages alleged herein.

SECOND CAUSE OF ACTION

(Failure to Intervene - Fourth Amendment - 42 U.S.C. § 1983)

26. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

27. At the time of the incident in question in this lawsuit, members of the New York Police Department had an affirmative duty to assess the constitutionality of interactions between their fellow members of the Police Department and civilians, and to intervene where they observe another member of the Police Department falsely arresting a civilian without probable cause.

28. Defendant Police Officers were present on September 30, 2017 and witnessed the previously alleged wrongful actions by Defendants, all of whom unlawfully interfered with Plaintiff's exercise of his Constitutional rights.

29. The arrest of Plaintiff was clearly without probable cause or other legal justification yet Defendant police officers failed to take any action or make any effort to intervene, halt or protect Plaintiff from being unlawfully and wrongfully arrested.

30. Defendants' violation of Plaintiff's Constitutional rights by failing to intervene in Defendant Police Officers' unconstitutional arrest of Plaintiff resulted in the injuries and damages set forth above.

THIRD CAUSE OF ACTION
(Individual Supervisory Liability - 42 U.S.C. § 1983)

31. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

32. Defendant Police Officers John Does were, at all relevant times, supervisory personnel of the New York Police Department, with oversight responsibility for the training, instruction and supervision of the named and unnamed individual Police Officer Defendants who deprived Plaintiff of his federal Constitutional rights.

33. The individual supervisory Defendant knew or should have known that the named and unnamed individual Police Officer Defendants failed to intervene, failed to investigate and failed to prevent the unlawful arrest of Plaintiff, and in his deprivation of Plaintiff's rights.

35. The individual supervisor Defendant knew or should have known that the named and/or unnamed individual Police Officer Defendant was conducting an unreasonable and unlawful seizure and false arrest of Plaintiff, depriving him of his due process of law.

36. On information and belief, the individual supervisor Defendant was personally involved in either ordering, or failing to take preventative and remedial measures to guard against Plaintiff's Constitutional deprivations. The supervisory Defendant knew, or in the exercise of due diligence, should have known, that the actions taken against Plaintiff by the named and unnamed Police Officers Defendant was the result of a failure to investigate and an unlawful arrest.

37. The failure of the individual supervisor Defendant to train, supervise and/or

discipline the named and unnamed individual Police Officer Defendant with respect to the constitutional rights of civilians amounted to gross negligence, deliberate indifference or intentional misconduct, which directly and proximately caused the injuries and damages to Plaintiff set forth herein.

FOURTH CAUSE OF ACTION
(New York State Constitutional Violations)

38. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

39. Such conduct breached the protections guaranteed to Plaintiff by the New York State Constitution, Article I, §§ 6, 8, 11, and 12, including his rights of:

- a. freedom to engage in protected speech;
- b. freedom of assembly;
- c. freedom of association;
- d. freedom to petition for redress of grievances;
- e. freedom from unreasonable seizure of his person, including excessive force;
- f. freedom from arrest without probable cause;
- g. freedom from false imprisonment, that being wrongful detention without good faith, reasonable suspicion or legal justification, and of which wrongful detention Plaintiff was aware and to which Plaintiff did not consent;
- h. freedom from abuse of process;
- i. freedom from deprivation of liberty without due process of law; and
- j. equal protection, privileges and immunities under the laws.

40. Defendants' deprivation of Plaintiff's rights under the New York State Constitution resulted in the injuries and damages set forth herein.

FIFTH CAUSE OF ACTION
(False Arrest)

41. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

42. Acting under color of law, Defendants unlawfully caused, ordered, approved and/or knowingly failed to prevent Plaintiff's arrest without probable cause or other legal justification.

43. The individual Defendants committed the foregoing acts intentionally, willfully and with malicious disregard for Plaintiff's rights, resulting in the injuries and damages set forth above, and are therefore liable for punitive damages.

SIXTH CAUSE OF ACTION
(False Imprisonment)

44. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

45. Acting under color of law, the individual Defendants unlawfully caused, ordered, approved and/or knowingly failed to prevent Plaintiff's wrongful detention, thereby depriving him of his liberty without good faith, reasonable suspicion, or other legal justification.

46. For almost all of the relevant time, Plaintiff was conscious of his confinement, and at all relevant times, Plaintiff did not consent to his confinement.

47. Plaintiff was falsely imprisoned for approximately 1 day.

48. The individual Defendants committed the foregoing acts intentionally, willfully, and with malicious disregard for Plaintiff's rights, resulting in the injuries and damages set forth above, and are therefore liable for punitive damages.

SEVENTH CAUSE OF ACTION
(Intentional Infliction of Emotional Distress)

49. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

50. Defendants by their aforementioned acts, did intentionally, willfully, and knowingly cause Plaintiff to suffer mental and emotional distress, pain and suffering, and damage to name and reputation.

51. Defendants committed the foregoing acts intentionally, willfully and with malicious disregard for Plaintiff's rights and are therefore liable for punitive damages.

EIGHTH CAUSE OF ACTION
(Negligent Infliction of Emotional Distress)

52. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

53. The individual Defendants, by their aforementioned acts, did negligently cause Plaintiff to suffer mental and emotional distress, pain and suffering, and damage to name and reputation.

NINTH CAUSE OF ACTION
(Negligence of the Individual Defendants)

54. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

55. The individual Defendants, by their aforementioned acts, negligently failed to use due care in the performance of their duties in that they, among other negligent acts:

a. failed to perform their duties as a reasonably prudent and careful police officer or supervisor would have done under similar circumstances; and/or

b. carelessly and recklessly seized and detained Plaintiff without a warrant or probable cause; and/or

c. carelessly and recklessly failed to intervene in the unlawful actions taken against Plaintiff resulting in his unlawful arrest, detention and prosecution.

56. The negligent actions of the individual Defendants directly and proximately caused Plaintiff's injuries and damages set forth above.

WHEREFORE, Plaintiff demands the following relief jointly and severally against all Defendants:

- (a) a declaration that Defendants violated Plaintiff's federal and state civil rights;
- (d) compensatory damages for the injuries suffered by Plaintiff by reason of Defendants' unlawful and unjustified conduct, in an amount just and reasonable and in conformity with the evidence at trial that exceeds the jurisdictional limits of all lower courts;
- (c) punitive damages against the individual Defendants assessed to deter such intentional and reckless deviations from well-settled constitutional standards, to the extent allowable by law;
- (d) reasonable attorneys' fees and costs pursuant to 42 U.S.C. § 1988; and
- (e) such other and further relief as appears just and proper.

Dated: Mineola, New York
May 10, 2018

RAISER & KENNIFF, P.C.


E. Gordon Haesloop
Attorneys for Plaintiff
300 Old Country Road, Suite 351
Mineola, NY 11501
(516) 742-7600

VERIFICATION

STATE OF NEW YORK)
) ss.:
COUNTY OF NASSAU)

E. GORDON HAESLOOP, ESQ. being sworn, deposes and says:

He is an attorney for CHARLES YOUNTS, Plaintiff in the within action; he has read the within Verified Summons and Complaint and knows the contents thereof; and the same is true to his own knowledge, except and to the matters herein stated to be alleged upon information and belief, and as to those matters, he believes them to be true.

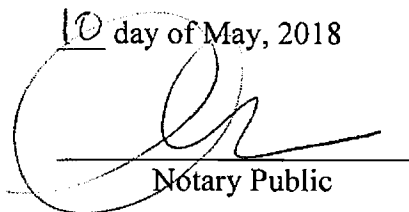
The source of his information and knowledge are based upon an investigation of the records on file.

The reason this Verification is being made by deponent and not by the Plaintiff is that the Plaintiff is not within the county where deponent has his office.


E. GORDON HAESLOOP, ESQ.

Sworn to before me this

10 day of May, 2018



Notary Public

CHRISTINE MEEHAN
NOTARY PUBLIC, State of New York
No. 01ME6226144
Qualified in Nassau County
Commission Expires August 02, 2018